



OREGON YOUTH AUTHORITY
Policy Statement
Part I – Administrative Services



Subject:

Assessment and Treatment Eligibility for Youth Who Have Committed Sexual Offenses

Section – Policy Number:

A: General Administration – 12.0

Supersedes:

I-A-12.0 (06/23)
I-A-12.0 (6/21)
I-A-12.0 (11/18)
I-A-12.0 (4/14)
Number change
II-E-5.1 (7/11)

Effective Date:

06/22/2026

Date of Last

Review/Revision:
None

**Related
Standards
and
References:**

- ORS [419C.486](#) (Consideration of recommendations of committing court; case planning)
- ORS [420A.125](#) (Adjudicated youth; intake assessments; reformation plan; placement)
- Oregon Sexual Offense Treatment Board: [Practice Standards and Guidelines for the Evaluation, Treatment, and Management of Juvenile Sexual Abusers](#)
- [OYA policy](#): I-A-11.0 Assessment, Multidisciplinary Teams, and Case Planning
II-E-5.0 Youth Assessment for Sex Offense Risk and Protective Factors - Facility
III-C-3.0 Youth Assessment for Sex Offense Risk and Protective Factors - Community

**Related
Procedures:**

- None

Policy Owner:

Development Services Assistant Director

Approved

Mike Tessean, Director

I. PURPOSE:

This policy provides guidelines for OYA staff to determine which OYA youth (on community supervision or housed in OYA facilities) may participate in sex offense specific assessment and treatment.

II. POLICY DEFINITIONS: None.

III. POLICY:

OYA has identified diversity, equity, and inclusion as an agency priority and initiative with a goal to build a respectful, diverse, equitable, and inclusive environment for youth and staff that is free from harassment, discrimination and bias. OYA recognizes the existence of disparities, and inequities, within the juvenile justice system. While OYA is only one part of that system, it plays a critical role in addressing the historical and systemic inequities it perpetuates. Staff must strive to be aware of their biases and eliminate any negative impact their biases may have when conducting assessments and making treatment decisions about youth.

OYA strives to protect the public and reduce crime by holding youth accountable and providing opportunities for reformation in safe environments. Providing OYA youth with behavioral treatment targeted at changing their high-risk behaviors is essential.

OYA provides safe and effective intervention for youth who have committed sexual offenses, and follows the Oregon Sexual Offense Treatment Board's [Practice Standards and Guidelines for the Evaluation, Treatment, and Management of Juvenile Sexual Abusers](#) when feasible. The Standards and Guidelines cover a wide spectrum of treatment modalities; however, OYA is limited to what treatment may be provided in a close-custody environment. OYA has adopted a standard juvenile sex offense treatment modality in its facilities.

IV. GENERAL STANDARDS:

A. Assessment and Treatment Eligibility for Youth Who Have Committed Sexual Offenses

A youth committed to OYA legal or physical custody may be assessed for and participate in treatment for youth who have committed sexual offenses if the youth was -

1. adjudicated for, or convicted of, a sex crime¹; or
2. referred for a sex crime but adjudicated for, or convicted of, a non-sex crime, **and** the court made an acknowledgement or finding that there was sexual activity involved in the crime.

B. Staff must follow OYA policy II-E-5.0 (Youth Assessment for Sex Offense Risk and Protective Factors – Facility) or III-C-3.0 (Youth Assessment for Sex Offense Risk and Protective Factors - Community) when assessing a youth who meets the criteria described in section A.

C. Any exception to this policy must be approved by the OYA director through the Development Services assistant director.

¹ Youth adjudicated for (or convicted of) the following crimes are subject to sex offense specific assessments and treatment:

- Rape, sodomy, unlawful sexual penetration or sexual abuse in any degree;

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- Incest with a child victim;
 - Using a child in a display of sexually explicit conduct;
 - Encouraging child sexual abuse in any degree;
 - Transporting child pornography into the state;
 - Paying for viewing a child's sexually explicit conduct;
 - Compelling or promoting prostitution;
 - Kidnapping in the first degree if the victim was under 18 years of age;
 - Contributing to the sexual delinquency of a minor;
 - Sexual misconduct;
 - Possession of materials depicting sexually explicit conduct of a child in the first degree;
 - Kidnapping in the second degree if the victim was under 18 years of age, except by a parent or by a person found to be within the jurisdiction of the juvenile court;
 - Burglary, when committed with intent to commit any of the offenses listed above;
 - Public or private indecency;
 - Harassment, touch intimate part;
 - Any attempt to commit any of the offenses listed above.

V. LOCAL OPERATING PROTOCOL REQUIRED: NO